

Hu v. Hyundai Motor America

AG Case No. NC-1-1249605441 · VIN: KM8KNDDF9RU253237

EXHIBIT 12 — ROADSIDE ASSISTANCE RECORDS

Consumer: Jimmy Y. Hu · Hearing: June 9, 2026 · Arbitrator: Maneesha Sharma

I. PURPOSE OF THIS DECLARATION

This declaration documents a discrete vehicle failure and roadside assistance breakdown event occurring February 9–13, 2026. It is submitted in connection with Repair Order #370267 (Paramus Hyundai Service Center) and constitutes Consumer's sworn chronological account of the complete electrical failure of the subject vehicle, the impound incident that resulted therefrom, and the systematic failures of Hyundai Roadside Assistance that prolonged vehicle recovery across five calendar days. This incident accounts for a portion of the 49+ additional days out of service accrued beginning February 9, 2026, and is submitted to supplement the Repair Order documentation in Exhibit 04.

II. INCIDENT SUMMARY

Item	Detail
Incident Dates	February 9, 2026 – February 13, 2026 (5 days)
Failure Event	Complete electrical/HV battery failure — vehicle non-start, no hazard lights, no door locks
Failure Location	780 Main Avenue, Passaic, NJ (parking lot)
Impound Facility	Renari's Towing Services, 179 Main Avenue, Passaic, NJ
Impound Fees Paid	Approximately \$400.00 USD (paid February 12, 2026)
Vehicle Recovered To	Paramus Hyundai Service Center, 234 Route 4, Paramus, NJ 07652
Repair Order	RO #370267 (battery failure — Feb 2026 event)
Roadside Ref. Cases	#765-30936, #765-31242, #765-325-70, #765-329-99, #765-331-94, #765-33-647
Consumer's Role / Impact	Practicing ophthalmologic surgeon; patient care obligations disrupted; incurred financial loss and significant personal and professional distress

III. CHRONOLOGICAL NARRATIVE

Monday, February 9, 2026 (Reference Cases: #765-30936, #765-31242)

Consumer retrieved the subject vehicle (2024 Hyundai IONIQ 5, VIN KM8KNDDF9RU253237) from Mizzoni's Auto Body, where a headlamp assembly repair had been completed. The vehicle was driven from the body shop to Consumer's office and subsequently to 780 Main Avenue, Passaic, NJ. At approximately 12:45 PM, Consumer parked the vehicle in the lot across from the KFC at that address. At approximately 1:00 PM — fifteen minutes after parking — Consumer returned to the vehicle and found it completely inoperable.

Failure Condition: Complete electrical failure. The vehicle would not start, the doors were unlocked (loss of security), and hazard/blinker lights were non-functional. Consumer immediately contacted Hyundai Roadside Assistance to request a tow truck. Due to the vehicle's immobility and inability to wait, Consumer walked approximately 30 minutes back to the office to attend to patient care obligations.

At 6:00 PM, Consumer contacted Hyundai Roadside Assistance for a status update; no tow truck had arrived. Roadside Assistance agents acknowledged they had an incorrect callback number on file, which caused the initial response delay. While en route home via rideshare, Consumer contacted Roadside Assistance again and made alternative arrangements: Nancy, the KFC store manager at 780 Main Avenue, agreed to remain on-site to supervise the tow.

Later that evening, an AAA/Hyundai-dispatched driver arrived at 780 Main Avenue and witnessed the subject vehicle being actively towed away by a separate, unauthorized tow truck. Consumer immediately contacted Hyundai Roadside Assistance to report the unauthorized tow, and the vehicle was logged as 'missing.'

Tuesday–Wednesday, February 10–11, 2026 (Reference Case: #765-325-70)

Consumer spent February 10 through the morning of February 11 contacting and visiting local impound facilities in an effort to locate the vehicle. At approximately 4:00 PM on February 11, Consumer located the vehicle at Renari's Towing Services (179 Main Avenue, Passaic, NJ). Consumer confirmed the vehicle was impounded and was quoted approximately \$391.00 in release fees, with additional fees possible. As the lot closed at 5:00 PM and an immediate tow could not be arranged, Consumer contacted Hyundai Roadside Assistance and was instructed to call back Thursday morning to coordinate vehicle recovery.

Thursday, February 12, 2026 (Reference Cases: #765-329-99, #765-331-94)

Consumer arrived in person at Renari's Towing to release the vehicle. Consumer paid approximately \$400.00 in impound release fees and surrendered the vehicle key to the clerk, Ms. Sandra Elliott. Ms. Elliott provided a receipt and confirmed that: (1) she would give the key to Renari's internal driver to ensure it remained with the vehicle; and (2) staff would be available to supervise the Hyundai tow pickup.

First Tow Attempt (Failed): Hyundai Roadside Assistance dispatched an AAA driver to Renari's business address (179 Main Avenue). Ms. Elliott clarified that the physical vehicle was located at their service station at an alternate address. When the driver contacted Consumer to relay this information, the driver became verbally aggressive regarding the address discrepancy and refused to proceed. The driver hung up without resolving the situation.

Second Tow Attempt (Failed): Consumer re-contacted Hyundai Roadside Assistance, reported the driver misconduct, and provided explicit instructions including Ms. Elliott's direct contact number so that the next driver could coordinate directly with Renari's staff. A new ticket was opened and a second driver, Caesar, was dispatched. Hyundai Roadside Assistance failed to relay Ms. Elliott's contact information to Caesar. Caesar arrived at the lot, found no one present, had no contact number to call, and departed. The ticket was closed without recovery.

Third Tow Attempt (Failed): At 4:00 PM, Consumer contacted Hyundai Roadside Assistance a third time to reopen the request. The driver did not arrive until 5:40 PM — forty minutes after Renari's Towing closes at 5:00 PM. The facility was closed and the tow could not be completed.

Friday, February 13, 2026 (Reference Case: #765-33-647)

Consumer contacted Hyundai Roadside Assistance first thing in the morning. A tow truck was successfully dispatched and the vehicle was recovered from Renari's Towing. The vehicle was towed to Paramus Hyundai Service Center, 234 Route 4, Paramus, NJ 07652, where it was admitted under Repair Order #370267 for battery failure diagnostics and repair. This concluded a five-day period during which the vehicle was entirely out of Consumer's possession and control due to the electrical failure and the cascade of Roadside Assistance failures described above.

IV. SUMMARY OF HARMS AND GRIEVANCES

Category	Description
Vehicle Failure	Complete HV battery/electrical failure while vehicle was in active use, occurring immediately after retrieval from body shop. Confirms a recurring, unresolved defect pattern consistent with prior warranty repairs.
Financial Loss	Approximately \$400.00 in impound release fees incurred solely because Roadside Assistance failed to recover the vehicle on February 9 before it was towed to an impound lot.
Roadside Failures (4 Incidents)	1. Incorrect contact number on file, causing initial non-response on Feb 9. 2. Failure to relay Ms. Elliott's contact info to Driver Caesar on Feb 12 (2nd attempt). 3. Verbal aggression and abandonment by contracted driver on Feb 12 (1st attempt). 4. Late dispatch arriving at 5:40 PM to a facility that closes at 5:00 PM (3rd attempt).
Professional Disruption	Consumer is a practicing ophthalmologic surgeon. The failure occurred during working hours, requiring Consumer to abandon the vehicle and walk 30 minutes to return to patient care. Ongoing vehicle unavailability across five days disrupted professional and personal scheduling.
Personal Distress	Significant time expenditure over five days tracking, locating, and recovering the vehicle. Consumer was forced to rely on rideshare, taxi, and public transit throughout this period.

V. CERTIFICATION

I, Jimmy Y. Hu, declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge and recollection. I make this declaration in connection with my New York New Car Lemon Law arbitration proceeding before NYSDRA, AG Case No. NC-1-1249605441.

Signature: _____

Date: _____

Jimmy Y. Hu, Consumer (Self-Represented)

320 W 38th St, Apt 2427, New York, NY 10018

jimmy.hu@gmail.com · 201-988-8155

This document is Exhibit 12 to Consumer's submission in Hu v. Hyundai Motor America, AG Case No. NC-1-1249605441.